



FNB Insurance Brokers (Pty) Ltd  
Po Box 7403  
Newton Park

6055

Dear Sir/Mrs/Ms

Insured: Sithembe Transport and Projects (Pty) Ltd

Policy Number: CAR198963

We are pleased to enclose our Policy Schedule, Sasria Coupon, Policy Wording and Excess Structure for your attention. Kindly examine the Policy Documents to ensure that they conform to your requirements and advise us of any amendments within 7 days.

The Policy Schedule and Wording, with the Proposal Form forms the basis of the contractual agreement between C & G Underwriting Managers and the Insured.

We suggest that the Policy Document be kept in a safe place for ease of reference in the unfortunate event of a claim.

We would like to take this opportunity to thank you for your support and assure you of our best service at all times.

Yours Faithfully.

A handwritten signature in black ink, appearing to read "Faheemah Bayat".

Faheemah Bayat

## Policy Schedule Contractors All Risk

**Reason for schedule** : New policy

**Policy Number** : CAR198963

This Schedule replaces all previous schedules and must be read in conjunction with the official Policy Wording.

### POLICY HOLDER DETAILS

**The Insured** : Sithembe Transport and Projects (Pty) Ltd  
**VAT Reg No.** : TBA  
**Company Reg No.** : TBA  
**Postal Address** : Unknown  
9999

#### Contact Details

**Work** :  
**Cell** :  
**Email** :

### BROKER DETAILS

**Broker** : FNB Insurance Brokers (Pty) Ltd  
**Postal Address** : Po Box 7403 Newton Park 6055  
**Physical Address** : 5th Avenue Office Park 5th Ave Newton Park 6055  
**Email** : jwilkinson@fnb.co.za **Fax** : (041) 365 5503  
**Work** : (041) 391 6800 **Cell** :

### INSURER DETAILS

**The Insurer** : Guardrisk Insurance Company Limited **VAT Registration No.** : 4250138072  
**FSP Number** : 75

### POLICY DETAILS

**Policy Number** : **CAR198963** **Payment Frequency** : Once Off  
**Period of insurance** : (a) From 15 September 2023 to 14 September 2026 (both dates inclusive)  
(b) Commencement Date - 15 September 2023  
(c) Lapsed Date 14 September 2026  
**Territorial Limits** : Territorial as stated in Policy Wording.

|                    |   |                                           |
|--------------------|---|-------------------------------------------|
| <b>The Insured</b> | : | Sithembe Transport and Projects (Pty) Ltd |
| <b>Policy No</b>   | : | CAR198963                                 |

## Note To The Insured

At first issue of this policy (or any section hereof) please check to ensure that all pages of all included sections are contained in this document.

It is important that these documents be carefully checked to ensure that they meet with your full approval. The content of this schedule and the applicable policy wording will be the basis upon which any claim arising in the future will be settled.

Where a premium field within the content of this schedule does not have a premium included or where the cover is not specifically stated as being included, cover for this particular class of risk is not in force. If cover or a quotation for such excluded risk is required please request this from the intermediary in writing.

All Sums Insured/Limits of Indemnity/Compensation specified within this Policy Schedule are inclusive of VAT.

I acknowledge that the sharing of insurance information for underwriting and claims purposes (including credit information) between insurers is in the public interest as it enables insurers to underwrite policies and assess risks fairly and to reduce the incidence of fraudulent claims with a view to limiting premiums.

On my own behalf and on behalf of any person I represent herein, I hereby waive my right to privacy with regard to underwriting or claims information (including credit information) that I provide or that is provided by another person on my behalf in respect of any insurance policy or claim made or lodged by me.

### Noting of Conditions

It is hereby declared and agreed that:

Excluded contracts

1. Contracts involving offshore technology
2. Where at commencement the estimate Final Contract Value exceeds the Policy Limit
3. Where at commencement the anticipated construction period exceeds 60 months
4. Involving work in or on waterborne vessels or aircraft
5. On an existing airport runway or airstrip or in or on any craft
6. Involving harbours, jetties, piers, wharfs, dams, canals, water channels, tunnelling, shaft-sinking, underground work and bridges over major watercourses
7. Hydro power stations
8. Wet works
9. New aviation/space, energy
10. Guarantee Maintenance Cover Period

Unless agreed by endorsement

### Warning

Do not sign any blank or partially completed application form.

Complete all forms in ink.

Keep all documents handed to you.

Keep notes of what is said to you.

Don't be pressurised to buy the product.

Incorrect information or non-disclosure by you of relevant facts may prejudice claims settlement.

### How to institute a claim

1. Notify your intermediary as per details below
2. The notification period is stipulated in your Policy Wording
3. A claim form will be handed, e-mailed or posted to you as per your instruction
4. Please complete and return this claim form to your intermediary
5. Our claims department will attend to your claim
6. Should you experience any difficulties, please contact your intermediary for further assistance

## PREMIUM SUMMARY AND INDEX OF COVER

|                                                       |          | Once Off        |
|-------------------------------------------------------|----------|-----------------|
| Contractors All Risk                                  | R        | 4,120.00        |
| Public Liability                                      | R        | 0.00            |
| <b>Total Premium</b>                                  | <b>R</b> | <b>4,120.00</b> |
| Sasria                                                | R        | 521.00          |
| <b>Total Insurance Payment (Inclusive of 15% VAT)</b> | <b>R</b> | <b>4,641.00</b> |
| <hr/>                                                 |          |                 |
| Broker Commission                                     | R        | 974.61          |
| 15% VAT                                               | R        | 696.15          |

Signed on behalf of the Insurer on 08 September 2023

Signature



For policy valuation purposes all amounts stated in the policy including sums insured, limits of cover and deductibles, are expressed inclusive of VAT at 15%. For clarity it is noted that in cases where a deductible is expressly recovered by the Insurer from the Insured the deductible amount in terms of the policy so recovered does not constitute a consideration as defined in the VAT Act and such has no VAT consequence.

In terms of a ruling issued by SARS, this document together with proof of payment of premium constitutes an alternative tax invoice, debit note or credit note as contemplated in sections 20(7) and 21(5) of the VAT Act respectively.

### Bank Details

#### C&G Engineering a division of Guardrisk Insurance Company Limited

|                |                                               |
|----------------|-----------------------------------------------|
| Bank           | First National Bank Limited                   |
| Branch Code    | 255005                                        |
| Account Number | 626 873 251 94                                |
| Account Name   | Guardrisk Insurance Company Ltd / Engineering |

|                    |   |                                           |
|--------------------|---|-------------------------------------------|
| <b>The Insured</b> | : | Sithembe Transport and Projects (Pty) Ltd |
| <b>Policy No</b>   | : | CAR198963                                 |

## Contractors All Risk

**Risk Address** : Unknown, , 9999

**Effective Date** : 15/09/2023

|                                    | <b>Sum Insured</b> | <b>Premium</b> |
|------------------------------------|--------------------|----------------|
| <b>Section 1 - Material Damage</b> | R 3 450 000        | R 4 120.00     |

**Description of Works** : Maintenance of balustrades, barriers, retaining walls, bollards and steel structures as well as updating the inventory on the street furniture

Once-Off Contract Limit : R 3 450 000

Contract Period: 36 Months

Theft and Malicious Damage **Yes** R 250 000

Additional Costs – Defined Events **Yes** R 250 000

Claims Preparation Costs **Yes** R 50 000

Cost and Expenses Define Events **Yes** R 250 000

Surrounding Property **Yes** R 500 000

Transit Limit **Yes** R 500 000

Storage Limit **Yes** R 500 000

Contract Escalation % **Yes** 20

Additional cost - no damage to works **Yes** R 250 000

Professional Fees **Yes** R 250 000

### Deductibles

**All Losses per event** R 10 000

|              |            |
|--------------|------------|
| <b>Total</b> | R 4 120.00 |
|--------------|------------|

**Risk Address** : Unknown, , 9999

**Effective Date** : 15/09/2023

|                                    | <b>Sum Insured</b> | <b>Premium</b> |
|------------------------------------|--------------------|----------------|
| <b>Contractors All Risk Sasria</b> | R 3 450 000        | R 521.00       |

**SASRIA cover (Underwritten by SASRIA Limited)**

|             |   |                                           |
|-------------|---|-------------------------------------------|
| The Insured | : | Sithembe Transport and Projects (Pty) Ltd |
| Policy No   | : | CAR198963                                 |

Public Liability

|           |   |                              |             |         |
|-----------|---|------------------------------|-------------|---------|
| Section 2 | : | Section 2 – Public Liability | Limit       | Premium |
| Liability |   |                              | R 5 000 000 |         |

|             |  |  |          |  |
|-------------|--|--|----------|--|
| Deductibles |  |  |          |  |
| General     |  |  | R 20 000 |  |

|       |  |  |   |      |
|-------|--|--|---|------|
| Total |  |  | R | 0.00 |
|-------|--|--|---|------|

## Additional Policy Endorsements

### Grid Failure or Interruption Exclusion

Notwithstanding any provision of this policy, including any exclusion, exception, extension, insuring provision, or any provision which would otherwise override this general exclusion, this policy does not cover any loss, damage, claim, cost, expense or other sum of any nature, including any consequential losses in terms of any section of this policy, that is directly or indirectly caused by, attributable to, in consequence of, resulting from, arising out of, following, or in any way in connection with an Electricity Grid Interruption

Electricity Grid Failure or Interruption means an interruption or suspension of the electricity supply from the national, regional, municipal, local or private grid of South Africa concurrently for whatsoever reason, whether due to damage, an inability and/or failure (whether partial or total) of the utility supplier to generate, transmit or distribute electricity, or otherwise.

### Communicable disease exclusion

1. Notwithstanding any provision of this policy, including any special exclusion or extension or other provision not included herein which would otherwise override a general exclusion, this policy does not cover any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed

to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

2.1 the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and

2.2 the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and

2.3 the disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property.

### LMA5410 CYBER LOSS LIMITED EXCLUSION CLAUSE (PROPERTY TREATY REINSURANCE)

1. Notwithstanding any provision to the contrary within this reinsurance agreement or any endorsement thereto, this reinsurance agreement excludes all loss, damage, liability, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with:

1.1 any loss of, alteration of, or damage to or a reduction in the functionality, availability or operation of a Computer System, unless subject to the provisions of paragraph 2;

1.2 any loss of use, reduction in functionality, repair, replacement, restoration or reproduction of any Data, including any amount pertaining to the value of such Data.

2. Subject to the other terms, conditions and exclusions contained in this reinsurance agreement, this reinsurance agreement will cover physical damage to property insured under the original policies

3. and any Time Element Loss directly resulting therefrom where such physical damage is directly occasioned by any of the following perils:

theft, fire, lightning, explosion, aircraft or vehicle impact, falling objects, windstorm, hail, tornado, cyclone, hurricane, earthquake, volcano, tsunami, flood, freeze or weight of snow

#### Definitions

4. Computer System means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility.

5. Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a Computer System.

6. Time Element Loss means business interruption, contingent business interruption or any other consequential losses.

|                    |   |                                           |
|--------------------|---|-------------------------------------------|
| <b>Client Name</b> | : | Sithembe Transport and Projects (Pty) Ltd |
| <b>Policy No</b>   | : | CAR198963                                 |

**SASRIA SECTION**

**COVER DETAILS**

| Description           | Sum Insured |           | Premium |        |
|-----------------------|-------------|-----------|---------|--------|
| Sasria Contract Works | R           | 3 450 000 | R       | 521.00 |

**MEMORANDA**

This is to certify that The Insured is also insured with the South African Special Risks Insurance Association (SASRIA) against loss or damage caused by riot or similar events in accordance with the terms and conditions of their policy, copy of which is attached to the policy wording and further copy available on request.



# STATUTORY NOTICE

in terms of the Financial Advisory and Intermediary Services Act, 2002

## IMPORTANT -PLEASE READ CAREFULLY

This Notice does not form part of the Insurance Contract nor any other document  
As a short-term insurance policyholder, or prospective policyholder, you have the right to the following information:

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### About the Insurer:

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|                                          |                                                                                                                                                                                                          |
|------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Company Name:</b>                     | Guardrisk Insurance Company Limited (Registration Number: 1992/001639/06)                                                                                                                                |
| <b>Physical Address:</b>                 | The Marc; Tower 2; 129 Rivonia Road, Sandton, 2146                                                                                                                                                       |
| <b>Postal Address:</b>                   | PO Box 786015, Sandton, 2146                                                                                                                                                                             |
| <b>Telephone Number:</b>                 | + 27 11 669 1000                                                                                                                                                                                         |
| <b>Facsimile Number:</b>                 | + 27 11 669 1931                                                                                                                                                                                         |
| <b>FAIS Registration:</b>                | Guardrisk Insurance Company Limited is an Authorised Financial Service Provider in terms of the FAIS Act - FSP 75                                                                                        |
| <b>Products Authorised:</b>              | Category 1 - Short-Term Insurance: Personal Lines and Commercial Lines.                                                                                                                                  |
| <b>Compliance Officer:</b>               | The Compliance Manager<br>Telephone Number: + 27 11 669 1039<br>Facsimile Number: + 27 11 669 2792<br>E-mail Address: <a href="mailto:compliance@guardrisk.co.za">compliance@guardrisk.co.za</a>         |
| <b>Complaints:</b>                       | You can access the Complaints Resolution Policy at:<br><a href="http://www.guardrisk.co.za">www.guardrisk.co.za</a> or e-mail <a href="mailto:complaints@guardrisk.co.za">complaints@guardrisk.co.za</a> |
| <b>Conflict of Interest:</b>             | You can access the Conflict of Interest Management Policy at <a href="http://www.guardrisk.co.za">www.guardrisk.co.za</a>                                                                                |
| <b>Professional Indemnity Insurance:</b> | Guardrisk Insurance Company Limited has Professional Indemnity Cover and Fidelity Cover in place.                                                                                                        |

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### About the Broker:

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As a short-term insurance policyholder, or prospective policyholder, your insurance Broker has to provide you with the following information of their Company:

- The name, physical address and postal address and telephone number.
- The legal status and any interest in the insurer.
- Whether or not the broker is in possession of professional indemnity insurance.
- Details of how to institute a claim.
- The rand amount or percentage of fees and commission payable.
- Written mandate to act on behalf of insurer.

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### Other Matters of Importance:

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|                          |                                                                                                                                                                                                                                                                                                                                                                                                          |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Information:</b>      | Your failure to provide correct or full information relating to your insurance or any claim may influence decisions made by C&G Engineering Risk Underwriters (Pty) Ltd or the Insurer in respect of such insurance or claim.                                                                                                                                                                            |
| <b>Understanding:</b>    | Ensure you understand what benefits and exclusions are applicable to your contract of insurance and that you are acquainted with what is not covered, what is restricted and if there are any special contract clauses.                                                                                                                                                                                  |
| <b>Premiums:</b>         | In terms of premium obligations towards the Insurer, it is also important that you are fully aware of the obligations that you assume as policyholder. These are indicated in the Insurance Contract.                                                                                                                                                                                                    |
| <b>Premium Payments:</b> | The manner of payment of premiums will differ according to the type of policy. The due date of premiums and the consequences of non-payment of such premiums are important and all of these are set out in the conditions of the Insurance Contract.                                                                                                                                                     |
| <b>Claims Procedure:</b> | All claims enquiries should be addressed to:<br>C&G Engineering, a Division of Guardrisk Insurance Company Limited<br>Physical Address: The Marc,<br>Tower 2,<br>129 Rivonia Road,<br>Sandton,<br>2196<br>Postal Address: P O Box 786015, Sandton, 146<br>Telephone Number: + 27 11 669 1000<br>E-mail Address: <a href="mailto:engineeringclaims@guardrisk.co.za">engineeringclaims@guardrisk.co.za</a> |
| <b>Warning:</b>          | <ol style="list-style-type: none"><li>Do not sign any blank or partially completed application form.</li><li>Complete all forms in ink.</li><li>Keep notes of what is said to you and all documents handed to you.</li></ol>                                                                                                                                                                             |

iv) Don't be pressurised to buy the product.

**Important:**

- i) You will be informed of any material changes to the information provided above.
- ii) If any of the information reflected above was given to you orally, this disclosure notice serves to provide you with the information in writing.
- iii) You will always be given a reason for the repudiation of your claim.
- iv) If the insurer wishes to cancel your policy, this will be done in writing, to your last known address.
- v) You will always be entitled to a copy of your policy at no extra charge.

**The FAIS Ombud:**

The FAIS Ombud  
PO Box 74571, Lynwood Ridge, 0040  
Telephone Number: + 27 12 470 9080  
Facsimile Number: + 27 12 348 3447  
E-mail Address: [info@faisombud.co.za](mailto:info@faisombud.co.za)

**The Short-term  
Insurance Ombud:**

For complaints on claims which are not resolved to your satisfaction by the product supplier, please contact:  
The Short-term Insurance Ombud  
PO Box 32334, Braamfontein, 2017  
Telephone Number: + 27 11 726 8900  
Facsimile Number: + 27 11 726 5501  
E-mail Address: [info@osti.co.za](mailto:info@osti.co.za)

**The Registrar of  
Short-term Insurance:**

For complaints on the Insurer which are not resolved to your satisfaction, please contact:  
The Financial Services Board  
PO Box 35655, Menlo Park, 0102  
Telephone Number: + 27 12 428 8000  
Facsimile Number: + 27 12 347 0221  
E-mail Address: [info@fsb.co.za](mailto:info@fsb.co.za)

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**SASRIA SOC LIMITED:**

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In the event of a SASRIA claim, all relevant documentation relating to your claim must be submitted to SASRIA:

|                            |                                                                    |
|----------------------------|--------------------------------------------------------------------|
| <b>Company Name:</b>       | SASRIA SOC Limited (Registration Number: 1992/001639/06)           |
| <b>Physical Address:</b>   | 36 Fricker Road, Illovo, Sandton, 2196                             |
| <b>Postal Address:</b>     | PO Box 653367, Benmore, 2010                                       |
| <b>Telephone Number:</b>   | + 086 172 7742                                                     |
| <b>Facsimile Number:</b>   | + 086 172 7329                                                     |
| <b>E-mail Address:</b>     | <a href="mailto:contactus@sasria.co.za">contactus@sasria.co.za</a> |
| <b>Website:</b>            | <a href="http://www.sasria.co.za">www.sasria.co.za</a>             |
| <b>Compliance Officer:</b> | The Compliance Manager                                             |
|                            | Telephone Number: + 086 172 7742                                   |
|                            | Facsimile Number: + 086 172 7329                                   |

### Dear customer...

Sasria provides short-term insurance cover against special risks that the broader insurance industry does not cover. Examples of these special risks are civil commotion, strike, riot, public disorder and terrorism.

This document is the legal and official version of your Sasria policy wording. The laws of South Africa govern this policy.

Your contract with Sasria comprises:

- the policy wording (this document);
- the Sasria policy schedule;
- any information that you, or someone acting on your behalf, supply to us; and
- any amendment to the policy.

Please read the wording carefully to make sure that you understand what your policy covers.

You must always read the wording together with the Sasria schedule.

We look forward to being of service to you.

#### **How to reach us**

011 214 0800 or 086 172 7742 | [contactus@sasria.co.za](mailto:contactus@sasria.co.za) | [www.sasria.co.za](http://www.sasria.co.za)

## General terms and conditions

### **How you should read this document**

"We", "our" or "us" in the wording refers to Sasria SOC Ltd. "You" or "your" in the wording refers to the policyholder.

Words in the singular include the plural. Words in the masculine gender (he) include the feminine gender (she).

### **Your Sasria policy and the underlying policy**

#### **You must have an underlying policy in force**

To be insured against the special risks mentioned above, you must have an underlying policy contract in force that includes Sasria cover at the time of the event that gives rise to a loss. If you choose to only take out Sasria cover, there must be a pro forma underlying policy as a formality. The pro forma policy can be issued by any underlying insurer. The underlying insurer must give you Sasria cover regardless of your risk profile.

**Sasria SOC Limited**

Tel: +27 11 214 0800 | 086 172 7742 • Fax: +27 11 447 8630 | 086 172 7329

36 Fricker Road, Illovo, 2196 • P.O. Box 653367, Benmore, 2010 • Email: [contactus@sasria.co.za](mailto:contactus@sasria.co.za) • Website: [www.sasria.co.za](http://www.sasria.co.za)

• Sasria SOC Ltd: Reg. No. 1979/000287/06 • FSP License No.: 39117



Sasria policies attach to the underlying policy or they are stand-alone:

- **Attached policies** incorporate the terms, conditions and warranties of the underlying policy with some exceptions (see the next subsection).
- **Stand-alone policies** have their own terms and conditions that are listed in the relevant policy wording.

| Policies that attach to the underlying policy | Stand-alone policies                                                                                                               |
|-----------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------|
| Material Damage (Fire)<br><br>Contract Works  | Motor<br>Business Interruption (Standing Charges,<br>Working Expenses, Loss of net profit, Loss of<br>gross profit, Project Delay) |

### Policies that attach to the underlying policy

For these policies, the terms, conditions, exclusions and warranties of the underlying policy also apply to the Sasria policy **except for those listed below**:

Your Sasria policy covers **civil commotion, riot, strike, lockout, public disorder rebellion and revolution and terrorism**.

Your Sasria policy does not cover **war and war-related**.

In each policy, see **What we cover** and **What we don't cover** for the details.

### Extensions

Sasria special risk cover only applies to the basic cover of the underlying policy. It does not apply to any additional perils and extensions included in the underlying policy, whether optional or not. Sasria covers its own list of extensions at an additional premium. You will find the list of extensions under the [Contract Works Section](https://www.sasria.co.za/wp-content/uploads/2020/12/Contract-Works-Extensions.pdf).  
<<https://www.sasria.co.za/wp-content/uploads/2020/12/Contract-Works-Extensions.pdf>>  
Contact us if you want Sasria cover for any of these extensions.

### Excess

For Material Damage (Fire), there is no excess payable if you claim under your Sasria policy.

For Contract Works, the following excess is payable:

For loss or damage to contract works and materials, the excess or first amount payable is calculated as 0,1% of the value of the specific contract for which a claim is made.

The following minimum and maximum amounts apply:

Minimum excess (first amount payable)

- R250 (Domestic risks)
- R2 500 (All other risks)

Maximum excess (first amount payable)

- R25 000

For loss or damage to a construction plant, the excess is R1 000 for each loss or damage arising from any one insured event.

## Premium

Any adjustment of the premium clause or condition in the underlying policy will not automatically apply to your Sasria policy.

## Period of insurance

The period of insurance of your Sasria policy is the same as the period of insurance of the underlying policy.

## Sasria and the underlying insurer must sign your schedule

For your Sasria contract to be valid, the Sasria schedule must bear the signatures of a director of Sasria and the underlying insurer.

## Cancellation

Only you have the option to cancel Sasria cover; Sasria will never cancel your cover.

If an underlying policy is cancelled, it does not automatically result in cancellation of your Sasria cover. The underlying insurer must give you the option to keep your Sasria cover except if the cancellation was due to non-payment. If you choose to keep your Sasria cover, the underlying insurer will issue a pro forma policy to which your Sasria policy will attach.

## Our rights

### To review rates and premiums

We reserve the right to review the terms and conditions of a policy, including rates and premiums, in line with all applicable laws (e.g. the Policyholder Protection Rules). Where necessary, some or all classes of business rates and premiums may be reviewed with reference to trends, expectations and assumptions, including but not limited to the following:

- a) Documented trend of poor performance on class or classes of business over the last three (3) - to five (5) years;
- b) Reasonably balancing the interests of Sasria SOC Ltd and its policyholders' expectations; and
- c) The extent to which the assumptions on which the premium was based have been met.

In accordance with the law, we will duly notify the policyholder in writing, through our distribution channels, of the details of the pending review; the effective date of the review; the reasons for the review; the implication of the review; the policyholder's rights and obligations regarding the review,

including any cooling-off rights offered and procedures applicable for the exercise thereof; and any other relevant details. Each policyholder will be given a reasonable notice period to make an informed decision as to whether the policy continues to meet the policyholder's requirements as a result of the reviewed terms and conditions.

## To take possession of damaged property

When you claim under this policy, you agree that we, and any person authorised by us, have the right to enter the damaged property, or take possession of it, and deal with it in any reasonable manner. This right does not imply that we accept liability for the claim. It also does not diminish our right to apply any condition of this policy.

You remain responsible for all damaged property until it is in our possession.

## To take legal action on your behalf

If we have compensated you for loss or damage, we have the right to recover our costs from the responsible third-party. We have the right to take legal action on your behalf to defend or settle any third-party claim. You agree that we may conduct the legal proceedings to our full discretion.

You must cooperate fully with us. Specifically, you agree to:

- do nothing that will prejudice or limit our rights;
- give us all information and documents we require;
- sign any document or affidavit that we request to enable us to exercise our rights;
- attend depositions, hearings, trials and give evidence as necessary; and
- make no admission, offer, promise, payment or statement about Sasria's liability without our written consent.

## Transfer of rights

Only you have the right to claim against us under this policy. This right may only be transferred to another person or entity if you should die or if the law orders it.

## Sharing information

By entering into a contract with Sasria, you waive your right to privacy and agree that we may disclose to any other insurance company any relevant information that you, or someone else on your behalf, has provided to us.

## Your responsibilities

### To be covered

To be covered under your Sasria policy:

1. The underlying policy must have been valid and active on the date of the insured event for which you claim;
2. The Sasria premium payments must be up to date and we must have received all such payments; and
3. You must, for attached policies, comply with the terms and conditions of your Sasria policy and those of the underlying policy (with the exceptions described above under **Policies that attach to the underlying policies**). For stand-alone policies, you must comply with the terms and conditions of your Sasria policy.

### Pay the premium in advance

Your Sasria premium is payable in advance per month or per year. If the period of insurance is more than one month, but less than 12 months, the full annual premium will be payable in advance.

If we do not receive your premium by the due date, we will consider this policy to have lapsed at 24:00 (midnight) of the last day of the previous period of insurance, unless you can prove that the

failure to pay was an error on the part of our agent or your broker.

### **Take all reasonable precautions**

You must take all reasonable action to prevent loss or damage.

### **Do not withhold information or commit fraud**

It is your responsibility to make sure that you give us all relevant information and that this information is complete, correct, and remains correct. If you withhold any information, or give us false or incorrect information, we may refuse to pay your claim.

We have the right to verify or investigate any information that you submit.

We have the right to reject a claim if you, or any person representing you, commit fraud in terms of this Sasria policy. If we refuse to pay your claim because of fraud or attempted fraud, we will not refund premiums already paid and may start legal proceedings against the defrauding party.

You commit fraud if you, or anyone on your behalf:

- submit a false or dishonest claim under this policy;
- use false or dishonest means or false information to benefit from the cover that we provide; or
- deliberately cause an insured event. For example, if you should deliberately cause a fire or add fuel to it.

## **Compensation**

### **How we compensate you**

If you have a valid claim, we will compensate you for the lost or damaged property by making a payment to you, or by repairing, replacing or reinstating the damaged property.

### **Who gets the compensation?**

If we accept liability, we compensate the policyholder, or his beneficiary in the event of his death, except in the following cases:

1. If the lost or damaged property is still under finance, we will pay the financial institution first.
2. If the lost or damaged property has been sold to you, but the seller still has an insurable interest in the property, we will compensate the seller proportionally if you write to us and request us to do so.

If the compensation that settles the claim is accepted, we will have no further liability regarding the claim.



## Policy limits

The limits of compensation are detailed in the respective policies.

## Agreed value

If the property is leased, rented or hired under an agreement that requires the insured to insure the property and/or be responsible for it at an agreed value, the sum insured will be the stipulated agreed value.

## Countries where you are covered

This policy covers only property situated in the Republic of South Africa or in the territorial waters of South Africa. The 1982 United Nations Convention on the Law of the Sea defines territorial waters as "a belt of coastal waters extending 12 nautical miles (22.2 km) from the baseline (usually the mean low-water mark) into the sea".

Sasria has an agreement with the Namibian special risk insurance association (Nasria). In terms of this agreement, you have Sasria cover in Namibia for a maximum of sixty (60) consecutive days.

## Disputes

If a dispute arises as to the compensation payable, or the liability of Sasria, we will refer the matter for arbitration in terms of the arbitration laws in force at that time in the Republic of South Africa, at a place that we will determine.

You will not have the right to take legal action against Sasria until the arbiter has made a decision.

The decision of the arbiter will be final and binding.

## Amendment

You, or Sasria, may amend this policy, but no amendment to this policy will be valid unless a director of Sasria has signed the amendment.

# How to claim

## What to do after an insured event

1. Contact your underlying insurer. The underlying insurer will let you know if you have a special risk claim and will handle the Sasria claim on your behalf.
2. Report the incident to the police within 48 hours and get a case number.
3. Do not make any offer or promise or admit responsibility.
4. Do not leave any damaged property without supervision, if possible.

You must claim, or notify us of the intention to claim, under this policy within thirty (30) days of the date of the insured event.

If we receive your claim or notification more than twenty-four (24) months after the date of the insured event, we will not consider liability, unless the claim is the subject of pending legal action or if the underlying insurer has not yet completed the final assessment of the loss. It is your responsibility to notify Sasria immediately of a pending legal action or delay in the final assessment.

## Supporting documents

For all claims, we will request supporting documents or information. Your underlying insurer will send you a list of all the required documents.

# Contract Works

Contract Works attaches to the terms, conditions and warranties of the underlying policy. See the General section for the details.

## Important words and phrases

| Word or phrase     | Word or phrase                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Civil commotion    | Large-scale violence by members of the public, causing injury to people or damage to property.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Consequential loss | Loss or damage that is not directly caused by an insured risk, but which is an indirect consequence or result of the insured risk.                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| Labour disturbance | <p>In the case of <i>Slabbert Burger vs Sasria</i>, disturbance in a labour context was defined as "an overt disturbance of the public peace in defiance of authority, leading to physical damage".</p> <p>Sasria will only consider a claim for loss or damage as a result of a labour disturbance if all four of the following elements are present:</p> <ul style="list-style-type: none"><li>• A disturbance of the public peace;</li><li>• Which happens openly, or which is clear upon observing;</li><li>• In disobedience of authority; and</li><li>• Which leads to physical loss or damage.</li></ul> |
| Lockout            | <p>According to section 213 of the Labour Relations Act (66 of 1995), a lockout means "the exclusion by an employer of employees from the employer's workplace, for the purpose of compelling the employees to accept a demand in respect of any matter of mutual interest between employer and employee, whether or not the employer breaches those employees' contracts of employment in the course of or for the purpose of that exclusion".</p> <p>This definition may be amended by South African law from time to time.</p>                                                                               |
| Looting            | <p>To steal goods, typically during a riot, strike or civil commotion. Looting must take place during an event that Sasria covers.</p> <p>Sasria does not cover theft.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                      |

|                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-----------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Policyholder    | <p>The person(s) or juristic entity in whose name the policy is issued. A policyholder could be:</p> <ul style="list-style-type: none"> <li>• A holding company and all its subsidiaries (as set out in the Companies Act, 61 of 1973); or</li> <li>• A subsidiary of the holding company; or</li> <li>• An entity other than a company; or</li> <li>• A person or persons.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                |
| Public disorder | <p>A riot or other civil commotion that gives rise to a serious risk to public safety, whether at a single location or resulting from a series of incidents in the same or different locations.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| Riot            | <p>In terms of case law, riot means the tumultuous disturbance of public peace by an assembly of three or more persons acting together in the execution of some private objective.</p> <p>Sasria will only consider a claim for loss or damage as a result of a riot, if all four of the following elements are present:</p> <ul style="list-style-type: none"> <li>• Three or more persons who have assembled with the same objective;</li> <li>• A tumultuous disturbance of the public peace;</li> <li>• Which leads to strife, violence or threats of violence; and</li> <li>• Physical loss or damage.</li> </ul> <p>In terms of this definition, Sasria does not consider the violent acts of three or more people who have different objectives as a riot.</p> |
| Strike          | <p>According to section 213 of the Labour Relations Act (66 of 1995), a strike means "the partial or complete concerted refusal to work, or the retardation or obstruction of work, by persons who are or have been employed by the same employer or by different employers, for the purpose of remedying a grievance or resolving a dispute in respect of any matter of mutual interest between employer and employee, and every reference to 'work' in this definition includes overtime work, whether it is voluntary or compulsory".</p> <p>This definition may be amended by South African law from time to time.</p>                                                                                                                                            |
| Terrorism       | <p>The unlawful use of violence and intimidation, especially against civilians, in the pursuit of political aims.</p> <p>Please note that Sasria cover does not extend beyond the borders of South Africa. In other words, if terrorism happens outside the borders of South Africa, Sasria does not cover that. Furthermore, Sasria does not cover consequential loss emanating from any acts of terrorism.</p>                                                                                                                                                                                                                                                                                                                                                      |

## Who do we cover?

The Contract Works policy covers the policyholder and any other insured entity or person named in the schedule.

## What we cover

Sasria will compensate you for the loss of, or damage to, property insured in the underlying policy, if that loss or damage is directly related to, or caused by:

1. Any riot, strike or public disorder or any act or activity which is calculated or directed to bring about a riot, strike or public disorder;
2. Any act (whether on behalf of any organisation, body or person, or group of persons) calculated or directed to overthrow or influence any State or government, or any provincial, local or tribal authority with force, or by means of fear, terrorism or violence;
3. Any act which is calculated or directed to bring about loss or damage in order to further any political aim, objective or cause, or to bring about any social or economic change, or in protest against any State or government, or any provincial, local or tribal authority, or for the purpose of inspiring fear in the public, or any section thereof;
4. Any attempt to perform any act referred to in clauses 1, 2 and 3 above;
5. The act of any lawfully established authority in controlling, preventing, suppressing or, in any other way, dealing with any act or attempted act referred to in clauses 1, 2, 3 or 4 above;
6. Looting committed as part of the acts described in 1, 2, 3, 4 or 5 above.

## What we DON'T cover

Sasria does not compensate you for:

1. Any form of consequential or indirect loss or damage, depreciation of any nature, wear and tear, and any form of mechanical or electrical failure or breakdown;
2. Consequential loss or damage resulting from stopping work, totally or partially, or from delaying, interrupting or stopping any process or operation;
3. Loss or damage resulting from a lawful authority confiscating, commandeering or requisitioning insured property, permanently or temporarily, or any attempt to do so;
4. Loss or damage, in any way caused by, or contributed to, an act of terrorism that uses, or threatens to use, any nuclear weapon or device, or any chemical or biological agent;
5. Loss or damage, in any way caused by, or contributed to, war, invasion, act of foreign enemy, hostilities or warlike operations (whether war be declared or not), civil war, mutiny, military rising, military or usurped power, martial law or state of siege, or any other event or cause which determines the proclamation or maintenance of martial law or a state of siege;
6. Any attempt to perform any act referred to in clauses 4 and 5 above;
7. The act of any lawfully established authority in controlling, preventing, suppressing or, in any other way, dealing with any act or attempted act referred to in clause 4 and 5 above;
8. Loss or damage caused directly or indirectly by, or through, or in consequence of any occurrence for which a fund has been established in terms of the War Damage Insurance and Compensation Act, 1976 (No. 85 of 1976) or any similar Act operative in South African territory to which this policy applies;
9. Loss caused by prevention of access (for example, penalties or fines for an extended contract period);
10. Loss or damage for which you are liable in terms of a contract, unless you would have been liable for the damage in the absence of the contract;
11. Loss or damage caused directly or indirectly by a nuclear event. A nuclear event is an incident or accident involving the release of radioactive material with negative health and environmental effects.

If we reject a claim by reason of exclusion 5 or 8, you will have to prove that the loss or damage was not related to exclusion 5 or 8.

## Conditions

1. If the sum insured of a **construction plant** is less than its replacement value at the time of the claim, we will apply the principle of average and only pay a portion of the claim. We will apply the principle of average to every construction plant for which you claim. Please note that the principle of average will not be applied if agreed value is the basis of cover.
2. The premium for **contract works and materials** is attached to the premium of the underlying policy. This means that, if the premium of the underlying policy is adjusted, the Sasria premium will be adjusted accordingly. This condition does not apply to the premium of a construction plant or a mobile plant.
3. It is your responsibility to comply with all government regulations that relate to contract works. We may not pay your claim if you do not comply with the relevant regulations.

## Compensation

For the policyholder, the total limit of compensation is R500 million (excluding VAT), per period of insurance. The policyholder may insure sub-contractors under this policy at an additional premium. The maximum total compensation for the sub-contractors together is R50 million (excluding VAT) per period of insurance. Sub-contractors may take out their own Sasria insurance.

These limits apply irrespective of the number of insured events and the number of claims for which we have accepted liability under this policy.

## Excess

For loss or damage to contract works and materials, the excess or first amount payable is calculated as 0,1% of the value of the specific contract for which a claim is made. The following minimum and maximum amounts apply:

Minimum excess (first amount payable)

- R250 (Domestic risks)
- R2 500 (All other risks)

Maximum excess (first amount payable)

- R25 000

For loss or damage to a construction plant, the excess is R1 000 for each loss or damage arising from any one insured event.